

March 3, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14262

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (see individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the continued transportation in commerce of certain railroad tank cars containing carbon dioxide with a tank head thickness slightly below the minimum required. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.31(b)(3)(iii) in that tank cars that do not meet the tank-head puncture resistance system requirements are not authorized for use after July 1, 2006, except as specified herein.
5. BASIS: This special permit is based on the application of GATX Rail dated July 15, 2005 and additional information dated December 9, 2005 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Carbon dioxide, refrigerated liquid	2.2	UN1013	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are 126 DOT Specification 105A500-W tank cars (listed below) having head thicknesses that do not meet the tank-head puncture resistance system requirements in § 173.31(b)(3)(iii). Each tank car has a head thickness of 0.75 inch and is equipped with a metal jacket and five inches of polyurethane foam insulation.

Tank Car No.

GATX010068	GATX012927	GATX027405	GATX027426	GATX027917	GATX042194	GATX056069
GATX010069	GATX012928	GATX027406	GATX027427	GATX027919	GATX042195	GATX056070
GATX010077	GATX012929	GATX027407	GATX027428	GATX041380	GATX042196	GATX056072
GATX010078	GATX015822	GATX027409	GATX027429	GATX041383	GATX042197	GATX056073
GATX010079	GATX015823	GATX027410	GATX027431	GATX041384	GATX042198	GATX066984
GATX010108	GATX015824	GATX027411	GATX027432	GATX041385	GATX045881	GATX083470
GATX010109	GATX015825	GATX027412	GATX027433	GATX041386	GATX045882	GATX083471
GATX010111	GATX015826	GATX027413	GATX027434	GATX041387	GATX045883	GATX083472
GATX012820	GATX015827	GATX027414	GATX027435	GATX041388	GATX045886	GATX083473
GATX012821	GATX015828	GATX027415	GATX027900	GATX041389	GATX045887	GATX083474
GATX012822	GATX015829	GATX027416	GATX027901	GATX041391	GATX045888	GATX083475
GATX012823	GATX015830	GATX027417	GATX027902	GATX041392	GATX045889	GATX083476
GATX012824	GATX015831	GATX027418	GATX027903	GATX041393	GATX056055	
GATX012825	GATX021612	GATX027419	GATX027905	GATX041395	GATX056056	
GATX012922	GATX021613	GATX027420	GATX027906	GATX041396	GATX056058	
GATX012923	GATX027401	GATX027421	GATX027907	GATX041397	GATX056060	
GATX012924	GATX027402	GATX027422	GATX027908	GATX042191	GATX056061	
GATX012925	GATX027403	GATX027424	GATX027915	GATX042192	GATX056066	
GATX012926	GATX027404	GATX027425	GATX027916	GATX042193	GATX056068	

b. MARKING - In addition to the required specification marking, each tank cars must be plainly and durably marked "DOT-SP 14262" as specified in §§ 172.302 (b) and (c).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail Freight.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

March 3, 2006

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
For Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWFREEMAN